



Notification Waiver Determination

Advent – NZCR Group Holdings

Acquisition	Trident NZ BidCo Limited, a special purpose vehicle established by Advent International L.P on behalf of its managed or controlled funds and affiliates and / or designated affiliates, entities, or co-investors (together, Advent), applied for a notification waiver in respect of proposed acquisition of 100% of the share capital in NZCR Group Holdings Limited (NZCR Group), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	22 September 2026

Parties to the Acquisition	Advent is a global private equity investment firm based in Boston, United States. Advent is focused on equity stakes and the management of investment funds in five core sectors, including business and financial services, consumer, healthcare, industrial and technology. NZCR Group is a New Zealand based physician-led clinical trials and medical research organisation that partners with global pharmaceutical and biotechnology companies to design and conduct early to late phase clinical trials in Australia and New Zealand. Its Australian business operations are undertaken by CMAX Clinical Research Pty Ltd (CMAX), which focuses on early-phase trials, along with its subsidiary Fusion Clinical Research Pty Ltd (Fusion), which focuses on synergistic later-phase clinical trials.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and certain publicly available information, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application and on public information available, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: - there is no horizontal overlap between Advent and NZCR Group in the supply of clinical trial services in Australia - there is a low risk of foreclosure or other concerning vertical or conglomerate effects post-acquisition.

	Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**